



Local Plan Examination

Main Hearings: Matter Six (Other Housing Matters)

October 2023

Acronyms

GLA – Greater London Authority

EHS – English Housing Survey

HMO – Houses in Multiple Occupation

PRS – Private Rented Sector

Evidence cited

EX39 Statement of Common Ground - London Borough of Barking and Dagenham and the Greater London Authority

EX6 Statement of Common Ground - London Borough of Barking and Dagenham and Transport for London

H6 Housing Evidence Paper Appendix 2: Proposed Site Allocations

H8 LBBD Strategic Housing Market Assessment and Housing Needs Survey (SHMA)

V2 LBBD Local Plan Viability Study

EX106 LBBD Proposed Main Mods August 2023 – 29 August 2023

H3 Barking Residential Absorption

Matter 6 – Other Housing Matters (Strategy Policy SP3 and Policies DMH1, DMH2, DMH3, DMH4, DMH5)

Matter 6, Issue 1- Whether Policies SP3, DMH1, DMH2, DMH3, DMH4, DMH5 are justified, effective, consistent with national policy and in general conformity with the London Plan in relation to its approach to housing

Note 5: The questions below do not include issues relating to the overall housing requirement or supply of housing which are dealt with under Matter 2.

Policy SP3 Delivering homes that meet peoples' needs

Q1. Is the reference to affordable housing in Strategic Policy SP3 accurate or does it need to apply to a wider range of residential development? Is it fully consistent with the approach taken to the provision of affordable housing in the London Plan?

6.1.1. The reference to affordable housing in Policy SP3 should refer to seeking a 50% strategic target for affordable housing on all housing schemes, not just private sector housing schemes. See PMM86.

6.1.2. This modification is required to ensure consistency with the London Plan's approach to affordable housing delivery and the modification has been agreed with the GLA in the LBBD/GLA Statement of Common Ground.

Q2. Is criterion 2a) in setting a 50% strategic affordable housing target, justified effective, consistent with national Policy and in general conformity with the London Plan? What is meant by all private sector schemes? What evidence is there which assesses whether or not this target is likely to be met and any associated implications? What is meant by the word 'strategic'?

6.1.3. As per our response to Q1 above, the reference to affordable housing should refer to a 50% strategic target for affordable housing on all housing schemes and a Main Modification has been proposed to rectify this in agreement with the GLA. This strategic target has been set out in the London Plan 2021 which has been adopted, and therefore their approach has been found sound at examination.

6.1.4. The 2020 update to the Strategic Housing Market Assessment and Housing Needs Survey for the Borough found that there was a net affordable need of 1,581 units per annum. This is over 50% of both the minimum 1,944 annual need as set out in the Housing Evidence Paper and the LBBD 2020 SHMA figure of 2,225. However, a viability report was prepared to inform the production of the Draft Local Plan and specifically, to test the ability of developments to accommodate emerging policies of the Draft Local Plan. This reviewed the ability of development to provide for affordable housing at different levels, based on the proposed tenure splits which are included in the Draft Local Plan. The viability assessment identified that there are significant variations in the percentages of affordable housing that can be provided,

depending on private sales values, scheme composition and the existing use value of the site. The authors of the assessment recommend that the current strategic target of 50% with a minimum target of 35% (as set out in the emerging London Plan (as it was at the time the viability report was authored)) be retained, applied on a 'maximum reasonable proportion' basis taking site-specific circumstances into account. They advise that setting a lower proportion of affordable housing is likely to result in a lower overall number of affordable units being delivered, as sites that could have delivered more would no longer do so.

- 6.1.5. Whilst we are not yet achieving the 50% target (2021-22 Local Authority Monitoring Report data showed 1056¹ net additional dwellings delivered and 295 new affordable homes delivered), Be First are leading by example and our current portfolio of housing schemes is set to deliver 78% affordable housing across current Be First schemes (2564 affordable vs. 568 market rent). Several larger developments in the Borough are also above the 35% minimum including Dagenham Green (Former Ford Stamping Plant – where 46% of the 3502 are planned to be affordable), Barking Riverside (where 40.3% of the 3504 homes with Reserved Matter consent to date are planned to be affordable) and Beam Park (of which 50% of 3,119 will be affordable).
- 6.1.6. We continue to monitor our starts, completions and planning application approval data and report on this via the Council's Local Authority Monitoring Report. The yearly data we provide the GLA for them to update their datastore also includes a tenure breakdown. We will continue to monitor affordable housing in line with key performance indicator 6 (set out in Appendix 3 of the Local Plan): "Total number of completed, started and permitted within the monitoring period classified as affordable by unit size for breakdown by:- Low cost rent (social rent or affordable rent); - Intermediate (London Living Rent or shared ownership). - Market."
- Q3. Having regard to criterion 2c) and the PPG² what is the requirement for accessible housing in the Borough and how would the Council's approach meet it or not? Should Policy SP3 be more explicit in terms of the proportion of accessible new homes that should be delivered on schemes? Is a threshold required? Should the accessible homes sought be expected to accord with specific accessibility standards to be effective?**
- 6.1.7. The English Housing Survey 2012 (referred to in the 2020 LBBD SHMA and HNS) estimates that there are 726,000 households where there are wheelchair users, representing 3.3% of all households. The comparative figures for 2007 were 587,000 and 2.8%. Work by South Bank University (also

¹ In considering wider delivery data in the Borough, it should also be noted that Local Plan policy DMH 1 requires developments with the capacity to provide 10 or more self-contained units, or which have a gross internal residential floor space of more than 1,000 sqm to provide affordable housing (measured in habitable rooms) in accordance with Part 2 a) of policy SP3. This means that there are a number of the net additional dwellings referred to in our yearly housing delivery figures that will not have met this requirement.

² Paragraph: 009 Reference ID: 63-009-20190626

referred to in the 2020 SHMA and HNS) re-analysing EHS data has estimated that nationally around 13% of wheelchair-using households have unmet housing requirements; this figure rises to 18% in London (the data cannot be disaggregated to a local authority level). The 2020 SHMA and HNS uses the 13% figure, meaning a current estimated unmet need for wheelchair accessible accommodation of 330.

6.1.8. There is some mismatch between the numbers needing social/affordable wheelchair accessible stock, and the allocations to that stock when it becomes available. There are a number of reasons for this including the need to minimise void periods and mismatches between locational preferences and the available stock.

6.1.9. However, as set out in our Housing Evidence Paper, the development of council-controlled land is a key mechanism by which the policy ambitions set out in the Draft Local Plan and the London Plan 2021 on this type of housing will be achieved in the Borough. Currently, in the Be First housing scheme pipeline alone, there are 288 M4(3) homes planned (of which 171 will be fit out at practical completion and the remainder have the appropriate service and size to fit out at a later point). As such, we believe we remain in a strong position to meet the unmet need for wheelchair accessible accommodation in the borough even before the 10% requirement is taken into consideration for non-Be First schemes.

6.1.10. In terms of clarity on the proportion of accessible housing required on new housing schemes, it is set out in the borough's 2020 SHMA and HNS that LBBD subscribes to the criteria for new accessible housing development laid out in the London Plan Policy D7. In summary, this states that at least 10% of dwellings should meet Building Regulation requirement M4 (3) 'wheelchair user dwellings', i.e., is designed to be wheelchair accessible, or easily adaptable for residents who are wheelchair users, and all other dwellings meet Building Regulation requirement M4 (2) 'accessible and adaptable dwellings. Policy DMH 3 paragraph 2a) is clear that development proposals should meet the London Plan Policy D7 requirements. As Local Plans should not repeat national or London Plan policies, we do not think further explanation is required on the proportion of accessible housing need or specific accessibility standards.

Q4. Does Strategic Policy SP3 adequately recognise the need for specialist older persons accommodation? Is the need for his type of accommodation clear and is there any evidence which assesses whether that need would be met together with any associated implications?

6.1.11. The Borough's SHMA and HNS 2020 found that the supply of, and demand for, sheltered accommodation is considered to be adequate, though condition is an issue. A Stock Condition Survey currently underway should provide

evidence to target asset investment strategy. As such, supply and demand are roughly in balance.

6.1.12. There is currently considered to be a deficit of extra care accommodation, but plans to develop a further 180 units will mean there should be 356 units by 2028. This should be enough to meet forecast need.

6.1.13. Additionally, the London Plan benchmark for specialist older persons housing for Barking and Dagenham between 2017-2029 is 70 units per year. To reflect more clearly that the Local Plan is using this benchmark (and to ensure alignment with the London Plan), the Council is proposing a Main Modification (PMM87) to SP3 (which has been agreed with the GLA).

POLICY DMH 3: Specialist housing

Q5. What is the aim of criterion 2e), is it justified and effective?

6.1.14. The intention of criterion 2e) is to encourage, and show support for, development for these specific groups where there is evidence of need. Both the Local Plan objectives and the Borough Manifesto are clear that no one should be left behind. The following need is outlined in the 2020 SHMA for the groups referenced in 2e):

6.1.15. Older People

- There is a need for an additional 180 units of Extra Care accommodation between 2018 and 2028. The authority will want to review the split between social rented and market provision periodically.

6.1.16. Disabled and Vulnerable People

- 330 households have unmet wheelchair accessible accommodation requirements and require it across all tenures. Others will have accessible housing needs that may not require full-wheelchair accessible standards.
- (Mental health, drug and alcohol, vulnerability, learning disabilities and complex needs) While supply for some groups is adequate there is concern about a perceived reduction in the availability of supported housing, and the type and quantity of floating support available
- (Care leavers, offenders, and those with no recourse to public funds) According to agencies working with them, additional supported accommodation and 'life skills' training is need for ex-offenders and prolific re-offenders (many of whom will have complex needs)

6.1.17. LGBT+ Community

- Agencies reported on a lack of provision for gay and bisexual men and transgender people facing domestic abuse; a disproportionate proportion of LGBT+ people facing court possession proceedings (including those formerly in foster care); and anecdotal evidence that there is a large group of LGBT+ asylum seekers in the borough, disconnected from support networks.

6.1.18. Students

- There are likely to be around 6,000 students requiring independent accommodation studying at Barking and Dagenham-based Higher Education establishments, suggesting there may be scope for more purpose built developments

6.1.19. Gypsies and Travellers

- See Matter 7. There is a need for more Gypsy and Traveller pitches in the Borough to meet the need expected over the Plan period up to 2037.

6.1.20. To be effective, policy SP3 should be read in conjunction with the relevant policies. For clarity, the Council propose the following as an Additional Modification to where reference to specific policies for a particular group should be reviewed:

e) support planning applications that are in line with other policies in this Local Plan and meet the needs of specific communities, including older people (see specific policy DMH 3), disabled and vulnerable people, LGBT community, students, families and private rented sectors (PRS) and Gypsies and Travellers (see specific policy DHM6).

Q6. Is criterion 2g) justified and effective? How would it be assessed whether or not a scheme accords with it and how would it be secured?

6.1.21. The intention of criterion 2g) is to ensure Barking and Dagenham residents benefit from development in the Borough. However, upon further review, we accept that criterion 2g) of Policy SP3 would be difficult to deliver. As a result, the Council propose the following main modification:

g) work proactively with developers to ensure that proposals demonstrate how they will benefit people who live and work in Barking and Dagenham. This could be, For example, through providing homes for local people and services and infrastructure that benefit the local community. ~~wherever possible, homes delivered are marketed to, and occupied by, people who live and work primarily in Barking and Dagenham.~~

Q7. Should the need for gypsy and traveller accommodation be more clearly specified in Strategic Policy SP3 to ensure consistency with national policy?

6.1.22. We do not believe including the specific need requirements for Gypsy and Traveller accommodation is necessary in Strategic Policy SP3, although we have no objection to doing so if it is deemed necessary. Need for the borough's Gypsy and Traveller community is already set out in the specific Local Plan policy DMH 6 and the introductory justification text on page 94 of the Plan.

6.1.23. However, for additional clarity, we propose a cross-reference to DMH 6. The Council's proposed main modification is set out in our response to Q5 above.

Policy DMH1 Affordable housing

Q8. Is the Policy consistent with the London Plan, including early and late-stage reviews? Is there a need to clarify when these reviews are necessary for effectiveness?

6.1.24. We consider the Policy, when taking into account main modifications agreed with the GLA in the LBBD/GLA Statement of Common Ground (see PMM88), to be consistent with the London Plan.

Q9. What evidence is there to support the affordable housing tenure split set out in figure 22?

6.1.25. Draft Policy DMH 1 sets out a tenure split of 50% social housing and 50% intermediate housing in accordance with Policy H6 of the London Plan (30% low-cost rented homes; 30% Intermediate; 40% locally determined (which the Local Plan has set as 20% Affordable rent and 20% Intermediate Rent)). As set out in the Housing Evidence Paper, this balanced approach has been undertaken to ensure the provision of affordable housing meets the needs of the community over the Plan period. It is the view of the Council that this targeted tenure mix will support the local economy by providing a range of homes at different affordable price points to meet the needs of people working in the borough, which could result the intensification of existing employment uses and creation of new employment uses.

6.1.26. Table E.1 of the 2020 update to the borough's SHMA shows that 49% of the need for affordable homes in the borough is made up of households who cannot afford London Living Rent, whilst 48% is made up of households who can afford between London Living Rent and Lower Quartile Market Rent. As a result, we were of the view that a 50/50 split of social housing vs intermediate rent was the most appropriate requirement.

Q10. Is it clear when residential proposals qualify for the fast-track route as set out in London Plan H5?

6.1.27. DMH1 sets out: "a) applying the threshold approach to viability in accordance with the most up to date London Plan Policy H5: threshold approach to applications, and/or guidance."

6.1.28. London Plan Policy H5 sets out the criteria needed for the fast-track route to be followed. As Local Plans should avoid repeating national and London Plan policies, we do not believe there is a need to further expand on this within the Barking and Dagenham Local Plan.

Policy DMH2 Housing mix

Q11. Is the Policy justified and effective, and in general conformity with the London Plan?

6.1.29. Chapter 4 in the London Plan (p190) sets out that boroughs can draw on the scenarios in the [GLA] SHMA to understand housing mix requirements or to inform local assessments. While the SHMA identifies the full range of needs between 2016 and 2041, boroughs may wish to prioritise meeting the most

urgent needs earlier in the Plan period, which may mean prioritising low-cost rented units of particular sizes.

6.1.30. As set out in the Housing Evidence Paper, in order to ensure that the appropriate mix of dwelling sizes is provided by new development, the information from the LBBDD SHMA in relation to projected dwelling size needs has been used to directly inform the size mix for market housing. For affordable housing, the mix of housing required to meet the needs of those considered likely to inhabit affordable housing has been included in the policy. In-house assessment by Reside, an affordable housing provider owned wholly by LBBDD Council, has identified needs for affordable housing tenures.

6.1.31. The 2020 SHMA and HNS sets out the estimated breakdown required of unit size for private housing. It states that the dwelling size breakdown of the borough's Objectively Assessed Need was dependent on assumptions about future occupancy rates. Assuming that private sector occupancy rates (which include significant levels of under-occupancy) remain as they were at the time the SHMA was undertaken, the required size breakdown of the housing stock in the borough in 2039 will be 39% one bedroom dwellings, 27% two bedroom dwellings, 25% three bedroom dwellings, and 10% four bedroom dwellings. See Table 6.10 below from the 2020 SHMA:

Table 6.10 OAN: Existing and projected bedroom size requirement

Bedrooms	Actual 2011	Estimated requirement 2014	Estimated requirement 2039
1	15%	39%	39%
2	37%	27%	27%
3	41%	24%	25%
4+	6%	10%	10%

Source: GLA household projections and Cobweb Consulting modelling

Q12. Does the Policy need to specify the type and minimum size of development proposals to which a housing mix requirement will apply to be effective?

6.1.32. We do not believe specifying a minimum size of development is required given the Council's proposed Main Modification set out in our response to Q13 below increases flexibility for Policy DHM 2. Additionally, from a review of other adopted Local Plans, specifying the minimum size of development proposals to which a housing mix requirement is applicable does not appear to be something that is included as standard.

6.1.33. With regard to specifying the type of development to which a housing mix requirement will apply, again we do not think this is necessary. In this case, Section 2b) of Policy DMH 2 sets out that the Council will consider a different housing mix, having regard to factors including the applicant's provision of up-

to-date evidence of housing needs. We are of the view that this covers specialist and more innovative forms of housing delivery (such a purpose-built shared housing).

Q13. For effectiveness, is there a need to specify any other criteria by which housing mixes differing from that set out in section 1 will be assessed, for example viability, to increase flexibility in applying the Policy?

6.1.34. Yes, to increase flexibility in applying the policy and to take into account viability factors for effectiveness, the Council is proposing a Main Modification (PMM89).

Policy DMH3 Specialist housing

Q14. Having regard to the PPG³ and to be consistent with national policy, is there a need for specialist housing in the Borough for older people? If there is, will that need be met by the Plan and what are associated implications? Should the Policy include a target for the provision of new specialist older persons housing?

6.1.35. See response to Q4 above which explains the borough's need situation for specialist housing for older people. A Main Modification (PMM87) to include a target for the provision of new specialist older persons housing is proposed to be added to Policy SP3.

Q15. Do the terms 'specialist housing' and 'specialist older persons housing' need defining or is the glossary definition sufficient?

6.1.36. As policy DMH 3 only refers to older persons housing, the Council propose to modify the title of Policy DMH3 as follows:

Policy DMH 3: Specialist Older Persons Housing

In line with this change, additional modifications would be required to align all references to this policy including the contents page and references in Key Indicator 8 within Appendix 3. As specialist housing is not otherwise referenced in the Plan, it is proposed that the glossary referencing specialist housing is amended. The Council propose the following Main Modification to the Glossary:

Specialist Older Persons Housing: For the purpose of this Plan, specialist older persons housing is defined as housing designed to meet the diverse range of needs of older people ~~homes for older people, households with specialist needs, supported housing, hostels and student accommodation.~~ Examples of specialist older persons housing include:

Policy DMH4 Purpose-built shared housing

Q16. For effectiveness and consistency national policy does purpose-built shared housing need to be defined in the glossary or by reference to

³ Housing for Older and Disabled People, Paragraph: 012 Reference ID: 63-012-20190626

published documents? It is clear what planning guidance and space standards are being referred to?

6.1.37. The reference to planning guidance and space standards is all in relation to the London Plan, but we acknowledge that this could be clearer. The Council propose the following Main Modification:

A. Meet the London Plan policy H16: Large-scale purpose-built shared living and London Plan planning guidance, including Policy D6 space standards, for this form of accommodation, and London Plan Policy D6: space standards requirements alongside any GLA guidance on this matter,

6.1.38. For consistency and clarity, the Council propose a Main Modification to the title of Policy DMH 4 to reflect the London Plan's reference to purpose-built shared housing as follows:

Policy DMH 4: Large-scale purpose-built shared housing

6.1.39. Additional modifications would then be required to align all references to this policy, including the contents page and references in Indicator 10 within Appendix 3.

Q17. Is it clear what 'preferred areas' are in reference to the area policies? Should this be clarified for effectiveness?

6.1.40. It is acknowledged that this is currently unclear. 'Preferred areas' are within the Borough's transformation areas as shown on the Policies Map. These areas are key areas for growth and regeneration. The Council propose the following modification to 1c, Policy DMH 4 clarify this:

1c) are located within transformation areas as identified in SPDG 1 and shown on the Policies Map. ~~preferred areas in accordance with Place policies (see Chapter 3: Transforming Barking and Dagenham).~~

Q18. Would purpose-built shared housing replacing self-contained housing be acceptable or would it conflict with Policy SP2? Does the Policy need to be amended to clarify this point for effectiveness?

6.1.41. We assume this reference is actually in regard to SP3 (section 2b). It is not the intention for purpose-built shared housing to replace self-contained housing as this would conflict with Policy SP3. The Council supports innovative types of housing, but this is where they meet an identified need and do not undermine the supply of self-contained housing suitable for families. As such, the Council propose the following main modification to clarify this stance and to avoid any conflict with Policy SP3:

d) do not undermine the supply of self-contained housing

Q19. Are the preferred areas referenced in 1c) justified? In the interests of effectiveness should these preferred areas be explained in Policy DMH4 or its justification text? How will any development proposals for purpose-built accommodation outside of the preferred areas be considered by the Council? Should this be clarified for effectiveness?

6.1.42. Due to the nature of large-scale purpose built shared housing, it is the Council's view that these would be more appropriate within the identified transformation areas as areas where there are significant growth and regeneration opportunities. These areas are expected to come forward with improved transport infrastructure and connectivity, which the Council view is a necessity for this type of high-density accommodation (as set out in our Housing Evidence paper. As such, targeting these areas also works towards the Council's ambitions of reducing car dependency.

6.1.43. Furthermore, these areas are expected to be areas that bring forward new employment opportunities. It is felt that locating this type of housing near employment hubs is particularly appropriate given the general target market for this type of housing is expected to be working age individuals.

Policy DMH5 Houses in multiple occupations (HMOs)

Q20. Should the title read: 'Houses in multiple occupancy'?

6.1.44. The title should read Houses in Multiple Occupation as this is how this type of accommodation is referred to in national guidance and London Plan policy. We will propose a minor modification to correct the typo.

Q21. Are the definitions of 'family housing' and 'dwelling houses capable of accommodating a small family with children' the same or different? If not, what does the latter description mean?

6.1.45. The submission Local Plan Glossary defines family housing as "A dwelling that by virtue of its size, layout and design is suitable for a family to live in and generally has three, four, five, or more bedrooms." A dwelling house capable of accommodating a small family with children is more likely to indicate smaller 2-3 bedroom properties.

6.1.46. In the interests of clarity, the Council propose the following Main Modification to 1b) of Policy DMH 5:

1b) do not result in the loss of housing capable of accommodating families with children existing family housing, or dwelling houses capable of ~~accommodating a small family with children~~

Q22. Should areas of high transport accessibility be defined in the interests of effectiveness? What is the justification for limiting HMOs only to within these areas?

6.1.47. We do not believe areas of high transport accessibility need to be defined further as they are in accordance with the London Plan and consistent with the approach with TfL and the GLA in our respective Statement of Common Grounds. It is also consistent with the approach other London boroughs.

6.1.48. Hence, we are of the view that the wording is sufficiently effective in its current form, and it is wording that is also used in the Tower Hamlets Local Plan 2031 which was adopted in 2020.

6.1.49. In terms of justification, Policy T1 of the London Plan sets out the following:

A. "Development Plans should support, and development proposals should facilitate:

1. the delivery of the Mayor's strategic target of 80 per cent of all trips in London to be made by foot, cycle or public transport by 2041
2. the proposed transport schemes set out in Table 10.1.

B. All development should make the most effective use of land, reflecting its connectivity and accessibility by existing and future public transport, walking and cycling routes, and ensure that any impacts on London's transport networks and supporting infrastructure are mitigated."

6.1.50. Ensuring HMOs are located in areas of high transport accessibility plays an important role in achieving this given the nature of the accommodation (i.e., accommodating multiple households and 3 or more tenants). In addition, reducing car dependency, as set out in paragraph 2.33 of Chapter 2 in the Local Plan, is one of the Council's key ambitions. Locating HMOs in areas of high transport accessibility is, therefore, a positive step in achieving this as they will help with access to areas of employment and education.

Q23. What are the 'relevant standards' referred to in 1e)? Is this criterion justified and effective?

6.1.51. The relevant standards referred to in 1e) of Policy DMH 5 relate to standards set out in law, policy and guidance. This includes having regard to the standards set out in the East London HMO guidance document: <https://www.lbld.gov.uk/sites/default/files/2022-07/HMO-East-London-guidance.pdf>. For clarity, the Council propose the following main modifications to reference this guidance:

e) comply with relevant standards, including those set out in the East London HMO Guidance⁴ and satisfy the housing space standards outlined in the London Plan policy D6: housing quality and standards, and/or its relevant guidance.

⁴<https://www.lbld.gov.uk/sites/default/files/2022-07/HMO-East-London-guidance.pdf>

Q24. Is section 2 justified and effective? Is it clear what information a developer is expected to provide in support of an application?

6.1.52. Upon further review, we recognise that it may be difficult to implement the maximum 10% figure referenced in this policy regarding conversion of houses to flat or HMOs in any road, and this therefore limits its effectiveness. We maintain that there is a need to preserve self-contained housing in the Borough. The 2018 Barking Market Absorption Report found that almost 60% of PRS households in Barking & Dagenham are families with dependent children, compared with 29% across Greater London. Furthermore, the 2021 Census found that the Borough is home to 57,150 children aged between 0 and 15, equating to circa 26% of the population (the highest proportion of all

local authorities in England and Wales). This evidently shows the need to maintain family housing in the borough. We therefore believe the aims of the policy are justified, however, we believe they are sufficiently covered by Section 1 of DMH 5 and so propose the following main modification to remove Section 2 of Policy DMH 5.

~~2. The number of houses that have been converted to flats or HMOs in any road (including unimplemented but still valid planning permissions) must not exceed 10 per cent of the total number of houses in the road; and no two adjacent properties apart from dwellings that are separated by a road should be converted~~